



Re: Assessment of Matter – Detailed Response to Preliminary Legal Opinion

1 message

Wilbur William Matthee <wilburmat@gmail.com>
To: Marco van der Walt <marco@schroterlaw.co.za>
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Tue, 03 Mar 2026 at 18:06

Dear Mr van der Walt,

Thank you for your assessment. I respect that you have formed a view and I appreciate your honesty in communicating it directly. However I must respectfully address each point you have raised because several of your conclusions appear to have been formed without access to the complete evidentiary record that I hold. I trust that The Whistleblower House, copied herein, will note this response in full.

2.1 – THE NO WORK NO PAY ARGUMENT

You are correct that no work no pay is a recognised principle in South African law. However your analysis does not engage with the three factors that make this specific case materially different from a standard unpaid leave scenario.

First, the employer's own HCBP Policy – which I hold as a documented annexure in my founding affidavit – expressly treats this recovery as a deduction subject to a 25% cap and a mandatory prior consultation obligation. An employer cannot invoke a legal principle to bypass its own contractual and policy obligations. Their own policy defeats their own defence.

Second, the gap period was not voluntary absence. I was medically documented as being between psychiatric facilities awaiting a hospital bed – a fact confirmed by Dr Jacques Malan, a specialist psychiatrist holding FCPSYCH(SA) qualifications, in a formal letter addressed to the employer dated 15 May 2025, two months before the deduction was processed. The employer held specialist medical evidence confirming the medical necessity of my second admission before they processed the recovery without consultation.

Third, no prior consultation took place. The employer's own manager stated in writing that the company does not stagger debt as it is not a loan company. The same manager sent me the HCBP Policy the following morning showing that the employer could in fact arrange staggered payment over a period of time. That written misrepresentation is documented and forms part of my annexure bundle. Furthermore the employer's own representative confirmed at the CCMA conciliation that their policy does not permit staggering and that they have never staggered payment – a statement directly contradicted by the policy document their own manager sent me.

The recovery of R14,811.77 represented 40.5% of my gross monthly remuneration in a single pay cycle, exceeding the statutory 25% cap under Section 34(2) of the BCEA and the employer's own internal policy cap by a documented margin. Whether the no work no pay principle applies on these specific facts is precisely the question the Labour Court is being asked to determine under Section 77A of the BCEA. The application is filed in terms of the correct statutory remedy and within the three-year prescription period.

2.2 – GENDER IDENTITY DISCRIMINATION

I note your point regarding the grievance procedure and available CCMA avenues. The gender identity discrimination matter forms part of my constructive dismissal and unfair labour practice claims which are proceeding to the Labour Court as you acknowledge. I am not seeking to re-open resolved processes but to place the totality of the employer's conduct before the court with jurisdiction to assess its cumulative effect on the employment relationship and on my decision to resign.

2.3 – THE PROTECTED DISCLOSURE AND PATIENT SAFETY FAILURE

With respect, your characterisation of this matter as a single isolated incident of a system glitch significantly understates what the complete documentation shows.

The root cause analysis — which I hold in full — confirms that the system integration failure caused automated non-adherence correspondence to be sent to a fully compliant member on two separate occasions across a six-month period. The failure arose from the DMS system not recognising the member's transition between benefit categories despite the correct information being reflected in the Gexus platform. This is a systemic integration failure that affects any member who transitions between benefit categories — not a one-off error affecting one person on one occasion.

More significantly, the employer's response to my disclosure was not remediation but exclusion. I was removed from the resolution process. My clinical assessment was overridden without engagement with its substance. My recommendation to address the system integration gap rather than contact the member on clinically incorrect grounds was characterised as insubordination. That characterisation then entered my employment record as part of the documented pattern of occupational detriment that followed my protected disclosures.

The Protected Disclosures Act protects a disclosure of information that tends to show a failure to comply with any legal obligation. A medical scheme administrator generating automated correspondence that incorrectly flags compliant members engages the Medical Schemes Act 131 of 1998 and the Council for Medical Schemes regulatory framework. The CMS has formally acknowledged my disclosure. The B-BBEE Commission has allocated Case Number 5/2/2026 to my complaint. Whether the disclosure meets the PDA threshold is a question for the court with jurisdiction to determine it — not for a preliminary assessment formed on partial documentation.

2.4 — THE EMPLOYER'S RESOLUTION ATTEMPTS — THE COMPLETE AND ACCURATE SEQUENCE

Your assessment states that the employer attempted to resolve my workplace disputes prior to my resignation. This characterisation significantly misrepresents the actual sequence of events which is fully documented.

When I formally disclosed systemic governance failures through internal channels, executive management did not investigate the substance of my disclosures. They referred my disclosures — together with my supporting evidence — back to the very department and the very individuals I was complaining about. That referral was not a resolution attempt. It was a structural elimination of any possibility of a fair investigation. No independent investigator was appointed. No separation between the investigating party and the subject of the complaint was maintained. My disclosure was handed back to the people it implicated.

That response left me with no viable internal avenue. I nevertheless made one further attempt. I engaged directly with the General Manager, the Senior Manager, and the Senior HR Manager. I requested three basic safeguards before meeting with them — that the meeting be recorded, that an agenda be provided in advance, and that appropriate protective measures be put in place given that I would be meeting alone with three senior managers about complaints that directly involved their conduct.

None of those safeguards were provided. When I asked what alternative safeguards they could offer the answer was none. Three senior managers responsible for the conduct I had disclosed were proposing an unrecorded, unagendaed meeting with no protective framework whatsoever for a formally protected whistleblower. Proceeding with that meeting would have placed me in an objectively untenable and potentially unsafe position.

I therefore did what the Protected Disclosures Act contemplates — I escalated to the Board of Directors on 9 January 2026 and focused on my CCMA proceedings.

The following day — 10 January 2026 — the employer filed a sworn opposing affidavit in Case WECT23564-25 in which their representative Mr Xolile Vincent Manyathi characterised my specialist-diagnosed severe depression and PTSD as a cynical excuse, described my professional conduct as untruthful and sloppy, and made these statements under oath while holding no medical, psychiatric, or psychological qualifications whatsoever. That affidavit was filed the day after my board disclosure.

That sequence — disclosure referred back to accused department, safeguards requested and refused, board escalation on 9 December 2025, retaliatory sworn affidavit on 10 December 2025— is the clearest possible illustration of why continued employment had become objectively intolerable. My resignation was not a failure to exhaust

internal remedies. It was the only rational response available to a formally protected whistleblower who had been failed at every level of the internal governance structure and who had then been subjected to a sworn character attack in a public statutory forum.

2.5 – GOOD FAITH OF DISCLOSURES

With respect this analysis inverts the actual sequence of events. My disclosures to external regulatory bodies followed – and did not precede – the exhaustion of every available internal avenue as set out above. I escalated from my direct manager to her manager to HR to senior management to executive management to the Board. I waited more than 30 days for a response to a formal victimisation and discrimination complaint and received institutional silence.

Section 9 of the Protected Disclosures Act explicitly protects disclosures to regulatory bodies. The JSE, FSCA, CMS, DEL, SAHRC, and B-BBEE Commission are all bodies to which protected disclosures may lawfully be made under the PDA. Making those disclosures after exhausting internal avenues is precisely what the Act contemplates and protects. The suggestion that this constitutes bad faith fundamentally misreads the statutory framework and the documented chronological sequence.

ON CONSTRUCTIVE DISMISSAL

You are correct that the test is a strict one. However the following documented facts collectively establish the threshold that the employment situation had become objectively intolerable.

More than 30 days of institutional silence in response to a formal discrimination and victimisation complaint. An unlawful salary deduction of 40.5% of gross earnings made without consultation or consent while I was between psychiatric admissions with the employer holding specialist medical evidence of my vulnerability. A manager's written misrepresentation that staggering was not permitted. A systemic protected disclosure referred back to the accused department. Safeguards for a resolution meeting requested and refused. A sworn CCMA affidavit by the employer's representative dismissing my specialist-diagnosed condition as a cynical excuse and attacking my professional character on the public record of a statutory proceeding. Post-resignation statutory breaches including UIF non-remittance and a Certificate of Service tailored to litigation pleadings rather than actual employment records.

That cumulative conduct – documented across nine months with supporting annexures for every element – is what the Labour Court will assess against the constructive dismissal threshold. Whether it meets that threshold is a question for the court. I hold the view that it does and I am entitled to place that question before the court for determination.

CONCLUSION

I appreciate your willingness to review my matter and your honesty in communicating your preliminary view. However I note that your assessment was formed without access to my complete evidentiary bundle – specifically the HCBP Policy, Dr Malan's specialist letter, the manager's written misrepresentation, the root cause analysis documentation, the 30-day institutional silence record, the full CCMA affidavit, the conciliation transcript, the uFiling non-remittance evidence, and the Certificate of Service misrepresentation chain.

Those documents address the specific gaps in your analysis directly and materially. A preliminary opinion formed without them cannot reflect the full strength of the documented position.

I am proceeding to file at the Labour Court on Thursday 5 March 2026 and will be seeking a second opinion from a specialist employment attorney. I hold the view that the complete documentary record presents a substantially stronger case than your preliminary assessment suggests.

I wish you well and thank you sincerely for your time.

Yours faithfully,
Wilbur William Matthee

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